

Localizer — Pre-Launch Legal Review

PREPARED FOR ERIN · CONFIDENTIAL

Product: Localizer, a tour-marketing asset platform by HWY61 LLC (brand: HWY61 Labs)
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Date: June 15, 2026 · **Target launch:** ~June 19, 2026
Scope of this review: Full pre-launch legal pass on the Localizer product only — Terms of Service, Privacy Policy, data-handling practices, public-facing claims, and IP/content posture. (TourRouter and our other products are out of scope and are not referenced in the Localizer legal documents.)
Live documents: <https://hwy61labs.com/terms> · <https://hwy61labs.com/privacy>

1. What Localizer Does (Orientation)

Localizer is a subscription web app for touring musicians, managers, booking agents, and other music-industry professionals. The core workflow:

- A user uploads one promotional image plus tour data (show dates, venues, cities, promoter contacts).
- The app generates branded marketing assets (social-media images and short videos, a print poster PDF) for every show, in each user's own fonts, colors, and layout.
- For each show, the app produces a unique, shareable **"Venue Link"** — a public web page where the promoter for that show can view and download all the assets, plus advance materials (stage plot, hospitality rider, FOH requirements, W-9) and the artist's team contacts.

Users may also upload tour documents (schedules, deal memos, W-9s) that are parsed by an AI service (Anthropic's API) to extract structured data. Authentication is passwordless (email magic link). Billing is via Stripe on a subscription basis with a 7-day, no-credit-card free trial.

Key facts relevant to your review

Item	Current state
Legal entity	HWY61 LLC (registered). "HWY61 Labs" is the brand / DBA.
Governing law	State of Texas; disputes in Texas state/federal courts.
Authentication	Email magic link only — no passwords collected or stored.
Venue Links	Public URLs, no login required. Token is a 256-bit cryptographically random string (non-guessable).
Eligibility	18+; service not directed to minors. No age-verification step.
Subprocessors (live)	Supabase (DB/auth/storage), Cloudinary (image CDN), Stripe (payments), Resend (email), Anthropic (AI parsing), Vercel (hosting), PostHog (analytics).
AI training	We represent that user content is not used to train AI models — consistent with Anthropic's default API policy (we have not opted into any data-sharing).
Reach	No geographic restriction — anyone globally can sign up.

2. Priority Findings

The items below are ranked by our sense of urgency. We're flagging them for your judgment — several reflect changes made in the final build week, so the live documents have drifted from current product behavior in at least one important place.

PRE-LAUNCH

2.1 — Privacy Policy understates what Venue Links expose

This is our most urgent item. The Privacy Policy currently represents that Venue Links expose only marketing assets and basic event details, and that no personal information is shared through them:

"Venue Links expose only poster images and event details (date, venue name, city). No personal account information is shared through Venue Links."

As of the final build week, the public Venue Link page **also** exposes, whenever the user populates the relevant fields:

- Team-member contact details — names, email addresses, and phone numbers for up to four fixed roles (Manager, Tour Manager, Booking Agent, Publicist) *plus* any number of custom-role contacts the user adds.
- The artist's Meta (Facebook) Business Manager ID.
- Download links to advance materials — stage plot, hospitality rider, FOH requirements, and W-9 (which may itself contain SSN/EIN, signature, and similar sensitive data).

So the representation is no longer accurate. The team-member contacts in particular are **personal data about third parties who are not Localizer users** (industry professionals whose info the account-holder enters), now published on a public URL.

OUR PROPOSED APPROACH (FOR YOUR REVIEW)

We see three levers and would value your guidance on how far to go before launch:

- **Disclosure (rewrite §3):** Amend the Privacy Policy to accurately describe everything a Venue Link can expose. We consider this mandatory pre-launch.
- **Contractual shift (tighten ToS):** Strengthen the user's representation that they have permission to publish any third-party contact information they enter, backed by the existing indemnification clause.
- **Design control (fast-follow):** Add a per-contact "show on Venue Page" toggle, defaulting to *off*, so nothing about a third party is public unless the user deliberately opts in. This is a real engineering task; we've scoped it but not built it.

Question for you: Is the disclosure rewrite + tightened representation sufficient for launch, with the per-field opt-in toggle as a fast-follow? Or do you consider the opt-in control a pre-launch requirement given this is non-user third-party PII on a public page?

REVIEW 2.2 — Three of your originally-flagged items

You previously identified three areas for review. Current status of each:

(a) Governing law / arbitration. The ToS sets Texas governing law and Texas courts. There is **no arbitration clause and no class-action waiver** — both common in SaaS terms. We'd value your recommendation on whether to add a mandatory arbitration + class-waiver provision.

(b) Liability-cap floor. The cap is the greater-of nothing — it's "amounts paid in the preceding 12 months." For free-trial users who have paid \$0, the effective cap is \$0. There is no stated minimum floor. Please advise whether to add a floor (e.g., a fixed minimum) and at what amount.

(c) Multi-state / international privacy thresholds. The Privacy Policy addresses CCPA briefly. It does **not** contain provisions for the other state privacy laws now in effect (Virginia, Colorado, Connecticut, Utah), nor GDPR machinery (controller/processor language, SCCs, DPA references, EEA representative). Because there's no geographic restriction on signup, EEA users uploading data would trigger GDPR.

Question for you: At what point (user volume, geography) do we need to layer in these additional regimes — and is anything beyond the CCPA note required at launch, given our initial user base is US music-industry professionals?

REVIEW 2.3 — DMCA: add a counter-notice procedure (decision made; need your language)

Our DMCA agent is registered with the U.S. Copyright Office under HWY61 LLC (Designation #DMCA-1073957, active June 9, 2026); the takedown address dmca@hwy61labs.com matches the ToS. The ToS currently includes only the **takedown** procedure — not a **counter-notification** procedure under 17 U.S.C. §512(g).

We've decided to add one — we'd rather have the complete §512 framework in place than leave it half-built. Rather than draft the statutory language ourselves (and risk publishing a process we don't correctly operationalize), we'd like you to supply or approve the standard counter-notice clause, ensuring it's consistent with our termination and repeat-infringer provisions and that the §512(g) timelines (forward the counter-notice, the 10-14 business-day window, restoration absent suit) are stated in a way we can actually follow.

For you: Please provide or bless the §512(g) counter-notice language, and advise whether to cite the designation number (#DMCA-1073957) in the ToS. We also want to confirm our repeat-infringer policy (§512(i)) is adequate to preserve safe harbor.

REVIEW 2.4 — User-uploaded third-party IP (photos, logos, fonts)

Users can upload band photos, sponsor logos, and custom font files (.ttf/.otf), none of which the platform verifies for ownership or license. The ToS addresses this with a content-responsibility representation and a specific font-licensing representation:

"You are solely responsible for ensuring your Content does not infringe third-party rights, including photographic images, fonts, logos, and artwork." / "If you upload custom fonts, you represent you hold a valid license for digital marketing use; we do not verify font licenses."

We believe this is reasonably covered, but font licensing is a contract matter (distinct from the DMCA/IP-notice doctrine), so a foundry could in principle pursue the platform rather than the user.

Question for you: Are the existing representations adequate, or would you tighten the font/logo language or add anything structural?

CONFIRM 2.5 — Public-facing claims

Two marketing claims may warrant softening:

- **"Every" as an absolute.** The landing page repeats "every asset, every platform, every show." In fact, output is bounded by the supported formats (currently five) and platforms (Instagram, Facebook, X, web, print). There is no deliverability guarantee for unlisted platforms.
- **"Is my data safe?" FAQ.** The pricing-page FAQ states contacts are "private to your account." That conflicts with the Venue-Link Team exposure in 2.1 — some contacts *are* made public if the user populates them. We'd suggest something like "private until you choose to share it via a Venue Link."

Question for you: Do "every" and the data-safety FAQ need softening for accuracy/advertising-law reasons, or are they acceptable as ordinary marketing language?

CONFIRM 2.6 — Cookies & analytics

The product uses essential authentication cookies and PostHog for product analytics. There is **no cookie consent banner**. The Privacy Policy discloses this in prose. For EEA traffic, the ePrivacy Directive may require a consent banner for non-essential (analytics) cookies.

Question for you: Is a cookie banner needed at launch given our initial US focus, or is the prose disclosure sufficient until we have meaningful EEA traffic?

CONFIRM 2.7 — Indemnification carve-out

The user indemnification clause has no carve-out excluding HWY61 LLC's own gross negligence or willful misconduct — sometimes expected for enforceability/fairness.

Question for you: Add a standard carve-out?

3. AI Processing — Detail for Your Review

Certain uploaded documents are sent to Anthropic's API for parsing. Notably, uploaded W-9s and PDF tour schedules may contain third-party PII (and on a W-9, an artist's SSN/EIN). The ToS and Privacy Policy both represent that we do not use customer content to train AI models — accurate, as we rely on Anthropic's default API policy and have not opted into any data-sharing.

Question for you: Does the "no training" representation need to reference Anthropic's standard terms or a DPA, and is any additional disclosure warranted given W-9/PII content flows to a subprocessor for parsing?

4. What We Believe Is in Good Shape

For efficiency, these appear solid and likely need only confirmation rather than work:

- Entity, domain (hwy61labs.com), and contact emails are consistent *within* the legal documents.
- Localizer-only scope is clean — no references to our other products bleed into these documents.
- Venue-Link tokens are 256-bit and non-enumerable.
- Passwordless auth — no password storage — is accurately represented.
- Subprocessor disclosures match the services actually in use.
- The free trial is genuinely no-card (no payment method collected at trial start), as represented.

5. How We'd Like to Work With You

For each item above we've tried to state the facts, what we've already done, our proposed approach, and the specific decision we need from you — so you can react to concrete options rather than start from scratch. Where legal *language* needs drafting (e.g., the arbitration clause, the §3 rewrite, the counter-notice procedure), we'd like you to own the wording; we've described intent rather than pre-drafting clauses on purpose.

Our practical ask: help us separate the **true pre-launch must-fixes** from items that can be fast-follows shortly after launch, so we can hit our target date without carrying unacceptable risk. As of this draft, the one finding we believe is a genuine pre-launch blocker is **2.1** (the Venue-Link privacy disclosure); 2.2 has been reviewed and resolved, and the remaining items are for your judgment on timing.